

Our Ref: SM/ET/W/C

Your Ref:

7 September 2020

Richard McLean
2 McCubbin Street
Footscray VIC 3011

By email: rich@richmclean.com.au

Dear Mr McLean,

Re: Your family law matter

We refer to your telephone appointment on 26 August 2020, and 2 September 2020.

On 26 August 2020, you spoke with Ms Maramis and Elin.

You informed us:

- That you and Stefan (Steven) Iasonidis were in a de-facto relationship from 1 June 2010 to June 2015.
- That as a couple, you lived off your \$70,000 TPD payout dispensed to you in 2007, and your disability pension which you received from Centrelink for the duration of your relationship.
- That you declared your relationship to Centrelink initially. However, when Mr Iasonidis found out, he got angry and claimed he could not financially support you. At his behest, you revoked your Centrelink declaration.
- That you and Mr Iasonidis were in a financial relationship as you shared bank accounts, intended to save for holidays together and got engaged.
- That unbeknownst to you, Mr Iasonidis was earning \$15,000 a month from his employment at ASIO. On multiple occasions during the relationship, Mr Iasonidis boasted that if he retired at that point in time, he could live off his super comfortably.
- That during the relationship, Mr Iasonidis sold off a property worth over \$1 million dollars and had moved over \$1.2 million dollars into a tax haven scheme.
- That there was family violence throughout the relationship, in both emotional and financial respects. You had particular vulnerabilities as a result of your mental health issues that Mr Iasonidis took advantage off.

- That when the relationship ended in 2015, your TPD payout had been exhausted. You were left without a home and had care of Mr Iasonidis' dying dog. As such, you have suffered hardship.
- That since the breakdown of the relationship, you have tried to contact Mr Iasonidis for a property settlement. He has reacted poorly on each occasion, either by ignoring you or by threatening physical violence.

Advice Sought:

- You wanted to pursue a superannuation split.

Advice Given:

- We advised that you should try mediation. It can be conducted as a shuttle mediation, where you communicate through the mediator avoiding the need to speak directly with him.
- We advised that you can file a Family Violence Intervention Order (FVIO). An FVIO is a nationally recognised order that will prevent Mr Iasonidis from committing Family Violence against you.
- We advised there is two-year limitation period in which to issue an application to the Court for a division of property and that such time starts running from the date the relationship broke down. As the relationship broke down in 2015, time has lapsed in 2017. If you were to file an application for property orders you would have to demonstrate hardship and seek the court's leave to bring proceedings out of time.
- We further advised you that our city clinic might be better suited to help you with your matter as they have a group which deals with both criminal law and family law matters with the one supervisor. Hence your matter could be handled in the one group. We told you that we would refer you onto the city clinic and advise you of the outcome.
- We also discussed a possible referral to the social work clinic.

On 2 September 2020, Elin called you to discuss your matter further.

She informed you:

- That the matter was referred to the city clinic. However, it was deemed too complex for them to take on.
- She also informed you that your matter will remain at our Clayton Office at this stage.
- That we will draft a letter inviting your former partner to attend mediation.

We also confirm that we have received your email with Mr Iasonidis' contact information on 2 September 2020. You have provided us his email address. Please also provide us with his home address.

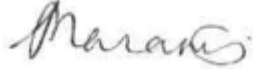
On further perusal of the information provided by you at this stage your matter appears to be too complex for our students. The complexity arises firstly because if the matter went to court, you would have to seek leave from the court to issue proceedings out of time. Further, it would seem that the property to be divided could be substantial and much work is needed to find where the property is located. Our clinic usually deals with matters where the property to be divided is no more than \$500,000. It would appear that in your case the property to be divided is more than \$500,000. We appreciate that what you are seeking is superannuation only. An additional complexity in your matter is whether there has been any Centrelink fraud committed.

However, we appreciate that you need some legal assistance at this stage. We are able to assist you with the preparation of a letter to Mr Ioannidis inviting him to Mediation. We enclose a draft of this letter for your perusal. Please read carefully and advise us of any changes you wish to make.

If you have any queries, please contact **Elin** via return email. Students and staff are working remotely and are not in the office. If you need to speak to a student, please call 1800 860 333 and we can arrange for the student or supervising lawyer to contact you when they are next available.

Yours faithfully,

MONASH LAW CLINICS –CLAYTON

A handwritten signature in cursive script, appearing to read 'Maramis', written in dark ink.

S. Maramis
Supervising Lawyer

Encl.